

NOTICE OF LODGMENT
AUSTRALIAN COMPETITION TRIBUNAL

This document was lodged electronically in the AUSTRALIAN COMPETITION TRIBUNAL and has been accepted for lodgment pursuant to the Practice Direction dated 13 July 2026. Filing details follow and important additional information about these are set out below.

Lodgment and Details

Document Lodged:	Application to Tribunal for Review
File Number:	ACT 3 of 2026
File Title:	IN THE MATTER OF INSURANCE AUSTRALIA GROUP LIMITED
Registry:	VICTORIA – AUSTRALIAN COMPETITION TRIBUNAL



REGISTRAR

Dated: 1/10/2026 3:49 PM

Important information

This Notice has been inserted as the first page of the document which has been accepted for electronic filing. It is now taken to be part of that document for the purposes of the proceeding in the Tribunal and contains important information for all parties to that proceeding. It must be included in the document served on each of those parties.

FORM H

(regulation 17)

Commonwealth of Australia

Competition and Consumer Act 2010

**APPLICATION BY INSURANCE AUSTRALIA GROUP LIMITED FOR REVIEW OF
AUSTRALIAN COMPETITION AND CONSUMER COMMISSION ACQUISITION
DETERMINATION (MN-65005)**

In the Australian Competition Tribunal

File No.

Re: Application for review of an acquisition determination made by the Australian Competition and Consumer Commission under section 51ABZE(1) of the *Competition and Consumer Act 2010* (Cth)

Application by: Insurance Australia Group Limited

Address: Darling Park, Tower Two, 201 Sussex St, Sydney NSW 2000

Role: Notifying party

Application for review

- 1 On 3 March 2026, Insurance Australia Group Limited (**IAG**) lodged a notification (the **Notification**) with the Australian Competition and Consumer Commission (**ACCC**) in relation to its proposal to acquire 100% of the issued share capital in RAC Insurance (**RACI**) from RACI Pty Ltd, a wholly owned subsidiary of RACWA Holdings Pty Ltd (**RAC Holdings**) (the **Proposed Acquisition**). RAC Holdings is a wholly owned subsidiary of the Royal Automobile Club of Western Australia Inc (**RAC**). The ACCC assigned the Proposed Acquisition the file number MN-65005.
- 2 The Proposed Acquisition forms part of a broader strategic alliance between IAG and RAC, which includes a long-term distribution agreement under which RAC Holdings will continue as distributor of the general insurance products issued by RACI to RAC members in Western Australia under the RAC brand (the **Distribution Agreement**). The Proposed Acquisition and the Distribution Agreement are together referred to as the **Strategic Alliance**.
- 3 IAG applies, under s 100C of the *Competition and Consumer Act 2010* (Cth) (**Act**), to the Australian Competition Tribunal (**Tribunal**) for review of the Phase 2 determination of the ACCC under s 51ABZE(1) of the Act, dated 22 September 2026, that the Proposed Acquisition

must not be put into effect (the **Determination**). Pursuant to s 51ABZE(5) of the Act, for the purposes of the Act, the Determination is taken to be made when the ACCC includes a copy of it on the acquisitions register. A copy of the Determination and the statement of reasons for making the Determination were included on the acquisitions register on 23 September 2026.

4 IAG is dissatisfied with the Determination in respect of the Proposed Acquisition in the following respects:

- (a) the Determination was not the objectively correct or preferable decision;
- (b) the ACCC determined under s 51ABZE(1) of the Act that the Proposed Acquisition must not be put into effect on the basis of an incorrect conclusion that the Proposed Acquisition would, in all the circumstances, have the effect, or be likely to have the effect, of substantially lessening competition in a market;
- (c) the applicable statutory criteria in ss 51ABZE(1), 51ABZE(2)(c), 51ABZE(3), and 51ABZH of the Act provide that:
 - (i) the ACCC must not determine that the Proposed Acquisition must not be put into effect unless it is satisfied that the Proposed Acquisition would, in all the circumstances, have the effect, or be likely to have the effect, of substantially lessening competition in any market (s 51ABZE(2)(c));
 - (ii) when assessing whether the Proposed Acquisition may be put into effect or must not be put into effect, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers (ss 51ABZE(3) and 51ABZH(2)); and
 - (iii) when assessing whether the Proposed Acquisition may be put into effect or must not be put into effect, the ACCC may have regard to the contract, arrangement, or understanding pursuant to which the acquisition is to take place (s 51ABZH(3)(a)) and the commercial relationships of the parties to the acquisition (s 51ABZH(3)(c)).
- (d) upon a proper application of the applicable statutory criteria in ss 51ABZE(1), 51ABZE(2)(c), 51ABZE(3), and 51ABZH of the Act, the objectively correct or preferable decision is that:
 - (i) a mandatory precondition to the power to determine that the Proposed Acquisition must not be put into effect is not satisfied. In particular, the Tribunal should not be

satisfied that the Proposed Acquisition, having regard to the Strategic Alliance pursuant to which the Proposed Acquisition is to take place, if put into effect, would, in all the circumstances, have the effect, or be likely to have the effect, of substantially lessening competition in any market; and

- (ii) accordingly, it must be determined that the Proposed Acquisition may be put into effect.

5 The determination that IAG is seeking from the Tribunal is as follows:

- (a) under s 100N(1)(a) of the Act, the Determination be set aside; and
- (b) under ss 51ABZE(1) and 100N(1)(b) of the Act, a determination that the Proposed Acquisition may be put into effect.

Information and Documents

- 6 A copy of the ACCC's Phase 2 Determination Statement of Reasons dated 22 September 2026, provided under s 51ABZE(4) of the Act, is at **Attachment A**.
- 7 A copy of the notice of competition concerns in relation to the Notification (dated 25 May 2026) is at **Attachment B**.
- 8 IAG will provide a concise statement in accordance with s 7-22(2) of the *Competition and Consumer (Notification of Acquisitions) Determination 2025* (Cth).

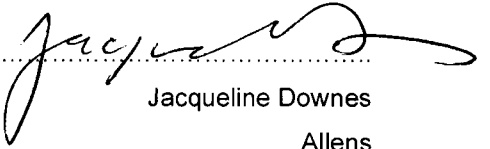
Address for service

- 9 IAG's address for service for the purpose of regulation 21 of the *Competition and Consumer Regulations 2010* (Cth) is:

c/o Jacqueline Downes
Allens
25/33 Alfred Street Sydney NSW 2000 Australia

Dated: 1 October 2026

Signed on behalf of the applicant, IAG

A handwritten signature in black ink, appearing to read 'Jacqueline Downes', is written over a horizontal dotted line.

Jacqueline Downes

Allens

Solicitors for the applicant, IAG